

HOUSE No. 33

So much of the recommendations of the Massachusetts Teachers' Retirement System (House, No. 26) as relates to the definition of wages for retirement calculations

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the definition of wages for retirement calculations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of Chapter 32 is hereby amended by adding at the end of the
2 definition of “wages” the following paragraph:

3 Notwithstanding the foregoing, wages shall also include payments made by an employer
4 to an employee in supplementation of weekly incapacity payments under the provisions of
5 sections sixty-nine to seventy-five inclusive of chapter one hundred fifty-two, or of sections
6 thirty-four, thirty-four A, thirty-four B, thirty-five A, thirty-five F, thirty-six, until a retirement
7 allowance becomes effective for him under the provisions of sections one to twenty-eight
8 inclusive of this chapter. The extent to which these supplemental payments are considered wages
9 shall be limited, when combined with such incapacity payments, to the amount that in the
10 determination of the retirement board the member would have received during the applicable
11 time period, had they not been so incapacitated.